

9:00 A.M.

Calendar Line # 2

Case Name Emilia Arroyo vs Juan Manuel Salas, Jr.

Case No. 23CV416906

Demurrer

Before the court is cross-defendant's demurrer to cross-complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

A. FIRST AMENDED COMPLAINT ¹

Defendant Juan Salas, Jr. ("Salas") is plaintiff Emilia Arroyo's ("Arroyo") son. (First Amended Complaint ("FAC"), ¶¶2 – 3).

Defendant Salas was born in February 1980. (FAC, ¶6). In his 20s, defendant Salas lived in an apartment in San Jose, California. (*Id.*). Plaintiff Arroyo lived in Palm Springs at the time and supported defendant Salas by paying the rent for his apartment. (*Id.*).

In summer 2009, plaintiff Arroyo decided it would be better to buy a house and pay a mortgage than pay defendant Salas's rent. (FAC, ¶7). In October 2009, plaintiff Arroyo purchased a home located at 7310 Pittsfield Way in San Jose, California for \$422,000.00 ("Subject Property"). (*Id.*). Plaintiff Arroyo paid \$12,600.00 for the downpayment and financed the balance with a mortgage loan in both her name and defendant Salas's name. (*Id.*). Title to the Subject Property was held by plaintiff Arroyo and defendant Salas, but the parties understood and intended for plaintiff Arroyo to make all payments towards the loan and pay all other expenses associated with the Subject Property including property taxes and utilities. (FAC, ¶¶7 – 8).

While living at the Subject Property, defendant Salas had a roommate who paid \$500.00 per month, but plaintiff Arroyo received no portion of those payments. (FAC, ¶9).

In 2014, plaintiff Arroyo had surgery that adversely affected her ability to financially support defendant Salas. (FAC, ¶10). Consequently, plaintiff Arroyo sold her residence in Palm Springs and moved into the Subject Property. (*Id.*). Defendant Arroyo's roommate moved out. (*Id.*). Due to the financial hardship, plaintiff Arroyo modified the original mortgage loan and also took a second mortgage loan. (*Id.*). Both loans remained in plaintiff Arroyo and defendant Salas's names and plaintiff Arroyo continued paying the mortgage and almost all expenses associated with the Subject Property. (*Id.*).

In 2016, plaintiff Arroyo purchased a new vehicle by making a downpayment and financing the balance. (FAC, ¶11). Since then, plaintiff Arroyo has paid the loan and all expenses associated with the vehicle. (*Id.*). Defendant Salas has not paid anything towards the vehicle. (*Id.*).

In November 2017, plaintiff Arroyo gave \$120,000.00 to defendant Salas asking him to keep it in a Certificate of Deposit ("CD") account which he did. (FAC, ¶12). In 2019, defendant Salas withdrew \$8,000.00 from the CD account without plaintiff Arroyo's knowledge and consent. (*Id.*).

In 2019, worried something could happen to her, plaintiff Arroyo executed, but did not record, a quitclaim deed to the Subject Property to defendant Salas and added defendant Salas's name to the vehicle's title. (FAC, ¶13).

¹ On July 20, 2026, the court issued an order granting plaintiff Emilia Arroyo leave to file a second amended complaint. As of July 22, 2026, plaintiff Arroyo has not yet done so. Plaintiff Arroyo's first amended complaint remains the operative pleading.

Subsequently, plaintiff Arroyo and defendant Salas's relationship deteriorated. (FAC, ¶14). In October 2022, plaintiff Arroyo asked defendant Salas to move out of the Subject Property and asked for defendant Salas's cooperation in removing his name from title to the Subject Property and vehicle, and transferring money from the CD account with interest to plaintiff Arroyo. (*Id.*). Defendant Arroyo moved out of the Subject Property and assured plaintiff Arroyo he would cooperate in transferring title and moneys, but he never did. (*Id.*).

On June 6, 2023, plaintiff Arroyo commenced this action against defendant Salas by filing a complaint.

On September 28, 2023, defendant Salas filed an answer to plaintiff Arroyo's complaint.

On July 1, 2024, after obtaining an order allowing her to do so, plaintiff Arroyo filed the now operative FAC which asserts causes of action against defendant Salas for: (1) declaration of resulting trust; and (2) breach of fiduciary duty.

On July 31, 2024, defendant Salas filed an answer to plaintiff Arroyo's FAC.

B. CROSS COMPLAINT

On August 18, 2025, after obtaining leave to do so, defendant Salas filed a cross-complaint against Arroyo. The cross-complaint alleges that in 2009, Arroyo and Salas jointly purchased the Subject Property, taking title as tenants-in-common and assuming responsibility for the first and second mortgage loans. (Cross-Complaint, ¶6). At the time, Arroyo contributed a greater portion of the down payment as Salas was still pursuing his education and earning limited income. (*Id.*).

Arroyo provided financial support by transferring funds into Salas's personal checking account from which he paid the mortgage and other Subject Property related expenses. (Cross-Complaint, ¶7). These transfers were intended as gifts and not as contributions made in exchange for an ownership interest. (*Id.*). As his income increased, Salas assumed a larger share of the mortgage and property expenses himself. (*Id.*).

Over time, Arroyo expressed her intent that the Subject Property should belong solely to Salas. (Cross-Complaint, ¶8). Arroyo expressed her desire that Salas own the Subject Property outright so there would be no need to transfer her interest upon her death. (*Id.*). This expression of intent is consistent with Arroyo's pattern of assisting her other children in acquiring property during their lifetimes. (*Id.*).

To give effect to her intent, Arroyo executed a quitclaim deed on October 11, 2019 conveying all of her interest in the Subject Property to Salas as a gift. (Cross-Complaint, ¶9 and Exh. A). The San Mateo County Recorder's Office rejected the deed for recording due to a missing or incomplete Preliminary Change of Ownership Report ("PCOR"). (Cross-Complaint, ¶10). To correct the issue, Arroyo executed a second quitclaim deed on October 16, 2019, again conveying her interest in the Subject Property to Salas and identifying the conveyance as a gift under Revenue and Taxation Code section 11930. (*Id.*).

Although both deeds were executed and delivered to Salas, neither was successfully recorded. (Cross-Complaint, ¶11). Nevertheless, Arroyo's intent to gift the Subject Property was clear and unequivocal and delivery of both deeds was completed. (*Id.*).

After a personal falling out in 2022, Arroyo excluded Salas from the Subject Property and has remained in exclusive possession ever since despite previously transferring her interest and relinquishing any claim of ownership. (Cross-Complaint, ¶12).

Salas's cross-complaint against Arroyo asserts causes of action for: (1) quiet title; and (2) declaratory relief.

On November 19, 2025, cross-defendant Arroyo filed the motion now before the court, a demurrer to cross-complainant Salas's cross-complaint.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

III. ANALYSIS

A court may sustain a demurrer on the ground of failure to state sufficient facts if "the complaint shows on its face the statute [of limitations] bars the action." (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315 (*E-Fab*)). A demurrer is not sustainable on statute of limitations grounds if there is only a possibility that the cause of action is time-barred; the defense must be clearly and affirmatively apparent from the allegations of the pleading [and matters of which the court may properly take judicial notice]. (*Id.*, at pp. 1315-1316).² When evaluating whether a claim is time-barred, the court must determine: (1) which statute of limitations applies, and (2) when the claim accrued. (*E-Fab, supra*, 153 Cal.App.4th at p. 1316).

Cross-defendant Arroyo demurs to both causes of action (quiet title and declaratory relief) asserted in cross-complainant Salas's cross-complaint on the ground that they are barred by the applicable statute of limitations.

The Legislature has not established a specific statute of limitations for actions to quiet title. (*Muktarian v. Barmby* (1965) 63 Cal.2d 558, 560 [47 Cal. Rptr. 483, 407 P.2d 659] (*Muktarian*)). Therefore, courts refer to the underlying theory of relief to determine the applicable period of limitations. (*Ibid.*; see 53 Cal.Jur.3d (2012) Quieting Title, § 34, pp. 412–413). An inquiry into the underlying theory requires the court to identify the nature (i.e., the "gravamen") of the cause of action. (*Hensler v. City of Gendale* (1994) 8 Cal.4th 1, 22 [32 Cal.Rptr.2d 244, 876 P.2d 1043]).

Generally, the most likely time limits for a quiet title action are the five-year limitations period for adverse possession, the four-year limitations period for the cancellation of an instrument, or the three-year limitations period for claims based on fraud and mistake.

(*Salazar v. Thomas* (2015) 236 Cal.App.4th 467, 476-477 (*Salazar*); footnotes omitted).

Arroyo contends a three year statute of limitations applies here because Salas alleges the reason he cannot assert sole ownership to the Subject Property is due to a "mistake" (technical defects in the recording process). Arroyo contends this "mistake" is the gravamen of the complaint. The court disagrees.

² See also *Heshejin v. Rostami* (2020) 54 Cal.App.5th 984, 992-993: "[A] demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense." (*Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 191 [213 Cal. Rptr. 3d 850]; accord, *Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1191 [151 Cal. Rptr. 3d 827, 292 P.3d 871] [application on demurrer of affirmative defense of statute of limitations based on facts alleged in a complaint is a legal question subject to de novo review]; *Favila v. Katten Muchin Rosenman LLP* (2010) 188 Cal.App.4th 189, 224 [115 Cal. Rptr. 3d 274] ["It must appear clearly and affirmatively that, upon the face of the complaint [and matters of which the court may properly take judicial notice], the right of action is necessarily barred."]).

“The elements of a quiet title action include all of the following: [1] A description of the property that is the subject of the action; [2] The title of the plaintiff as to which a determination is sought and the basis of the title; [3] ***The adverse claims to the title of the plaintiff against which a determination is sought***; [4] The date as of which the determination is sought; [5] A prayer for the determination of the title of the plaintiff against the adverse claims.” (5 Witkin, California Procedure (4th ed. 1997) Pleading, §622, pp. 87 citing Code Civ. Proc. §761.020; emphasis added). The Law Revision Commission Comment to Code of Civil Procedure section 761.020 states, with regard to the third element that, “Subdivision (c) requires the ***naming of specific adverse claims as to which the plaintiff seeks to quiet title***.” (emphasis added).

In the court’s opinion, the gravamen of a claim for quiet title is what “adverse claim” to title did the defendant assert. Here, the cross-complaint alleges, in relevant part, “[Arroyo] claims an adverse interest in the Subject Property by asserting that she is the sole owner.” (Cross-Complaint, ¶19). However, this did not occur until, “Following a personal falling out in 2022, [Arroyo] excluded [Salas] from the property and has remained in possession ever since.” (Cross-Complaint, ¶12). Thus, in the court’s view, it is this allegedly wrongful exclusion of Salas from possession or illegal exercise of dominion over the Property which serves as the gravamen of Salas’s quiet title claim, not the unsuccessful recording of the quitclaim deeds.

Even if this court assumed that a three year statute of limitation applies to the claim for quiet title, Arroyo does not persuasively demonstrate when the cause of action accrued such that the court can conclude the cause of action is barred. As explained in the *Salazar* decision that Arroyo herself relies upon, “No statute of limitations runs against a plaintiff [or here, cross-complainant] seeking to quiet title while he is in possession of the property.” (*Salazar*, *supra*, 236 Cal.App.4th at p. 477).

It is reasonable to infer from the allegation, above, that Arroyo excluded Salas from the Subject Property after a falling out in 2022, Salas was in possession of the Subject Property prior to being excluded. Since the cross-complaint alleges only that Arroyo was excluded some time in 2022 without specifying any particular date, it does not appear clearly and affirmatively from the face of the cross-complaint that this cause of action is barred, even if the court were to assume the governing statute of limitations is three years.

Arroyo relies on this same argument with regard to the second cause of action (declaratory relief) believing the second cause of action to be “clearly predicated on the same theory and seek the same relief.”³

IV. CONCLUSION

Based on the foregoing, cross-defendant Arroyo’s demurrer to cross-complainant Salas’s cross-complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for quiet title and declaratory relief is OVERRULED. The Court will prepare the formal Order.

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³ See page 5, lines 5 – 6, of the memorandum of points and authorities in support of cross-defendant Arroyo’s demurrer to cross-complainant Salas’s cross-complaint.

Calendar Line # 6
Case Name Jennifer Voges et al vs Huiqiong Deng et al
Case No. 25CV483365
Demurrer Before the court is defendants Stanford Health Care and Huiqiong Deng, M.D.’s demurrer to the complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. I. <u>BACKGROUND</u> Plaintiff Jennifer Voges (“Voges”) was a long-term prescribed benzodiazepine user and was in active benzodiazepine withdrawal when she sought and received care from defendant El Camino Health dba El Camino Hospital (“ECH”). (Complaint, ¶8). Despite plaintiff Voges’s benzodiazepine dependence and active withdrawal, defendant ECH staff administered opiates, including morphine and Dilaudid (hydromorphone), creating a high risk combination known to increase respiratory and neurologic dangers. (Complaint, ¶9). As a result of the contradicted opioids, plaintiff Voges suffered a drug-induced crisis requiring Narcan to reverse opiate toxicity and she was then given anti-psychotic medication that is contraindicated in benzodiazepine withdrawal, further destabilizing her condition. (Complaint, ¶10). Plaintiff Voges required Narcan after opiate administration and was given antipsychotic medication that worsened her condition. (<i>Id.</i>). Defendant ECH failed to obtain informed consent for, or disclose, the Narcan administration during or after the event. (Complaint, ¶11). Defendant ECH never informed plaintiff Voges or her family that Narcan had been administered, did not obtain consent, and did not disclose the intervention afterward. (<i>Id.</i>). Plaintiff Voges and her family later discovered this only upon review of medical records. (<i>Id.</i>). Defendant ECH staff refused to provide plaintiff Voges’s baseline, prescribed, benzodiazepine and refused her progesterone, despite documented prescription and visible withdrawal symptoms, accelerating her deterioration. (Complaint, ¶12). Plaintiff Voges received care at defendant ECH between December 31, 2024 and January 8, 2025. (Complaint, ¶2). Rather than stabilizing plaintiff Voges, defendant ECH transferred her to defendant Aspen Skilled Healthcare, Inc. dba Woodlands Healthcare Center (“Woodlands”), a skilled nursing facility, for physical therapy even though she was medically unstable and required medical, not rehabilitative, care beyond the scope of a skilled nursing facility. (Complaint, ¶12). Defendant Woodlands lacked qualified personnel to properly manage benzodiazepine withdrawal and opiate complications. (<i>Id.</i>). Plaintiff Voges’s husband ultimately removed plaintiff Voges and transported her to defendant Stanford Health Care dba Stanford Hospital (“Stanford”) where she was immediately admitted. (Complaint, ¶15). At Stanford, under the care of defendant Huiqiong Deng, M.D. (“Dr. Deng”), plaintiff Voges was subjected to the administration of Ketamine against her explicit refusals; repeated invasive testing represented as “mandatory” despite objections; and undisclosed administration of medications, including ciprofloxacin, contraindicated in benzodiazepine withdrawal. (Complaint, ¶16). Stanford personnel, including Dr. Deng, engaged in coercive and intimidating conduct, including threats of psychiatric transfer for refusing medications, forced psychiatric evaluations despite objections, and threats of a feeding tube when plaintiff could not eat due to benzodiazepine related gastrointestinal symptoms. (Complaint, ¶17). Defendants Stanford and/or Dr. Deng failed to disclose, evaluate, or treat a documented enlarged thyroid observed on imaging, did not provide inpatient endocrine evaluation, and later canceled scheduled endocrinology follow-up. (<i>Id.</i>). A subsequent outside endocrinology evaluation in December 2025 noted a significant enlarged, tender, misshapen thyroid with concern for malignancy. (<i>Id.</i>)